

22STCV15934 22STCV15934

County: los-angeles

Division: Civil Law and Motion

Department: F46

Hearing date: 2026-07-29

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PLAINTIFF ELTON SPAIN'S MOTION FOR REASSIGNMENT OF ACTION
TO THE CENTRAL DISTRICT

Motion filed on June 2, 2026.

MOVING PARTY: Plaintiff Elton Spain

RESPONDING PARTY: Defendant Metcalf Construction Services,
LLC

NOTICE: OK.

RELIEF REQUESTED: Plaintiff seeks an order reassigning this
action to the Central District at the Stanley Mosk Courthouse.

RULING: Denied.

BACKGROUND/DISCUSSION

Elton Spain (Plaintiff) filed the Complaint on May 13, 2022 against Metcalf Construction, Inc. and Joseph Dante Dalessio. Plaintiff filed this motion on June 2, 2026. Metcalf Construction Services, LLC (Defendant) filed an

opposition on July 16, 2026. No timely reply was filed.

A party filing a motion must file a supporting memorandum unless the motion is listed in California Rules of Court, rule 3.1114. The Court may construe the absence of a memorandum as an admission that the motion lacks merit and as grounds for denial. (Cal. Rules of Court, rule 3.1113(a).)

Here, although Plaintiff's notice states that the motion is supported by an attached memorandum of points and authorities and the Declaration of Daryl Crouse, neither document was filed. The Court therefore construes the absence of a supporting memorandum as an admission that the motion is not meritorious.

CONCLUSION

Plaintiff's Motion for Reassignment is denied.